DIVISION BENCH ITEM NO.1

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.22/ALD/2023 IN CA (CAA) No.25/ALD/2023
(Second Motion)

Order dated: 14th December, 2023

Under Section 230-232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation :

HARDAYAL INFRATECH PRIVATE LIMITED
(CIN: U70102UP2012PTC051906)
Having its Registered Office at:
Hardayal Campus, Etah Road Shikohabad Firozabad UP-283135
PAN :-AACCH9912M,
Jurisdictional IT Deptt: Ward 2 (1) (1), Sanjay Place, Agra-282002

……. **Petitioner / Transferor Company No.1**

HARDAYAL BUILDTECH PRIVATE LIMITED
(CIN: U70100UP2014PTC063491)
Having its Registered Office at:
Hardayal Campus, Etah Road Shikohabad Firozabad UP-283135
PAN :-AADCH3990E
Jurisdictional IT Deptt: Ward 2 (1) (1), Sanjay Place, Agra-282002

……. **Petitioner / Transferor Company No.2**

AND

HARDAYAL INFRA PROJECTS PRIVATE LIMITED
(CIN: U70100UP2014PTC063509)
Having its Registered Office at:
Hardayal Campus, Etah Road Shikohabad Firozabad UP-283135
PAN :-AADCH3989D
Jurisdictional IT Deptt: Circle 2 (1) (1), Sanjay Place, Agra-282002

……. **Petitioner/ Transferee Company No.3**

Coram:
HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)
HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

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Present :

For the Petitioner Companies : *Sh. Suyash Agarwal, Adv.*

For the Registrar of Companies, Kanpur, U.P. : *Sh. Krishna Dev Vyas, Adv.*

ORDER

1. This is a joint Second Motion company petition filed by the Petitioner Companies namely, **HARDAYAL INFRATECH PRIVATE LIMITED** (Petitioner/ Transferor Company No.1), **HARDAYAL BUILDTECH PRIVATE LIMITED** (Petitioner/ Transferor Company No.2) with **HARDAYAL INFRA PROJECTS PRIVATE LIMITED** (Petitioner/ Transferee Company No.3) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

2. The petitioner companies have prayed for sanctioning of the Scheme of Amalgamation in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections. The First Motion application was filed seeking directions for dispensation of the requirement of convening the meetings of the Equity Shareholders and Unsecured Creditors as it is stated in the application that there are no Secured Creditors in the Applicant Companies vide CA (CAA) No.25/ALD/2023 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act'), necessary directions were issued on 26th October, 2023. In the said order, the meetings of Equity Shareholders and Unsecured Creditors of the Applicant Companies were directed to dispense with. Additionally, it was directed that since there are no Secured Creditors in the Applicant Companies, the requirement of convening the meeting of Secured Creditors does not arise.

3. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 26th October, 2023.

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4. Notices are accordingly issued in the present petition to be served by the Petitioner Companies through speed post within two weeks to the following Authorities along with a copy of this petition in soft copy as well as hard copy :-

(i) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi;

(ii) Registrar of Companies, Uttar Pradesh, Kanpur;

(iii) Official Liquidator, Allahabad;

(iv) RERA, Uttar Pradesh, Lucknow; and

(v) Jurisdictional Income Tax Authority by mentioning the PAN of the Company along with the copy of this petition in soft copy as well as hard copy.

5. Additionally, notice be issued to the Income Tax Department through the Principal Chief Commissioner of Income Tax, Lucknow mentioning the Assessing Officer with whom the petitioner companies are getting assessed as informed by the Ld. Counsel for the petitioner as per the PAN of the petitioner companies.

6. Ld. Counsel, Sh. Krishna Dev Vyas is present through VC who accepts notice on behalf of ROC, Kanpur, and therefore waives service. Ld. Counsel representing the Petitioner Companies is directed to supply the copy of the petition to the Ld. Counsel representing the ROC during the course of the day.

7. In addition to the above public notices, the notice of hearing will also be advertised in "Times of India" in English and "Amar Ujala" in Hindi language, having wide circulation in Agra, U.P. Editions by not less than 10 days before the next date fixed for hearing.

8. The petitioner companies shall at least 7 days before the date of hearing of the petition, file an affidavit of service regarding newspaper publication,

with newspaper clippings, as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may be filed within 30 days of receipt of notice failing which, it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

9. The next date of hearing of the petition shall be on 01.02.2024 for further consideration of the approval of the scheme as contemplated between the petitioner companies.

10. The registry shall also report before the date fixed for next hearing, as to whether any objections have been received to the proposed 'Scheme'.

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(Ashish Verma)
Member (Technical)

-Sd-

(Praveen Gupta)
Member (Judicial)

14th December, 2023

Kavya Prakash Srivastava
(Stenographer)